



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
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BY: **MA. JULINA B. JUTILO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 33RD REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MARCH
17, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Michael C. Escuyos		SB Member

ON OFFICIAL BUSINESS:

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ORDINANCE NO. 32
Series of 2026

**“AN ORDINANCE REGULATING THE ESTABLISHMENT AND OPERATION OF PRIVATE TALIPAPA OR
MINI-MARKETS WITHIN THE MUNICIPALITY OF CARMEN, PROVIDING PENALTIES FOR VIOLATION
THEREOF, AND FOR OTHER PURPOSES”**

Author: Hon. Michael C. Escuyos

Enacted: All Members Present

EXPLANATORY NOTE

The increasing number of privately operated talipapa or mini-markets within the Municipality of Carmen has brought both opportunities and challenges. While these establishments contribute to local commerce and provide convenient access to goods for residents, their unregulated proliferation poses concern related to health, sanitation, traffic and public order.

This Ordinance seeks to establish clear guidelines for the creation and operation of private talipapa or mini-markets, ensuring they comply with local standards on zoning, sanitation, safety and

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business permits. It also aims to protect the welfare of consumers, maintain order in our communities and promote fair business practices.

By instituting regulatory measures and corresponding penalties for violations, this Ordinance will help foster a more organized, safe and economically vibrant environment for both vendors and consumers in the Municipality of Carmen.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. TITLE- This Ordinance shall be known as the "Private Talipapa Regulation Ordinance of Carmen."

Section 2. DEFINITION OF TERMS- For the purpose of this Ordinance, the following terms are defined as follows:

- 1) Talipapa- a privately owned and operated mini-market or cluster of stalls where meat, fish, vegetables, fruits, and other daily commodities are sold to the public.
- 2) Private Talipapa Operator- the individual, corporation or entity that owns, manages or operates a talipapa.
- 3) Vendor- a person who occupies a stall or space within a talipapa to sell goods.
- 4) Permit- refers to all permits required for legal operation, including but not limited to Business Permit, Health Permit, Sanitary Permit and Barangay Clearance.

Section 3. SCOPE AND COVERAGE- This Ordinance shall apply to all private talipapa operating or intending to operate within the territorial jurisdiction of the Municipality of Carmen, whether permanent or temporary in nature.

Section 4. PERMIT AND REGISTRATION REQUIREMENTS- All private talipapa must secure the following before commencement or continuation of operations:

- 1) Barangay Clearance from the barangay where the talipapa is located.
- 2) Business Permit from the Business Permits and Licensing Office (BPLO).
- 3) Sanitary Permit from the Municipal Health Office.
- 4) Zoning Clearance from the Municipal Planning and Development Office (MPDO).
- 5) Fire Safety Inspection Certificate from the Bureau of Fire Protection (BFP).
- 6) Environmental Clearance, if applicable, from the Municipal Environment and Natural Resources Office (MENRO).

Section 5. STANDARDS AND REGULATIONS- Private talipapas must comply with the following:

- 1) Sanitation and Waste Management



- 2) Daily cleaning and proper waste disposal system
- 3) Provision of garbage bins and proper segregation
- 4) Regular pest control and drainage maintenance
- 5) Zoning Compliance
- 6) Must not be established in residential-only zones unless granted special clearance
- 7) Must maintain a minimum distance from schools, hospitals, and churches as required by zoning laws
- 8) Health and Safety
- 9) All vendors handling food must have valid health certificates
- 10) Meat and fish products must be sold in accordance with Municipal and National Food Safety Standards
- 11) Structures must comply with safety and building standards
- 12) Traffic and Accessibility
- 13) Talipapas must not obstruct public roads or sidewalks
- 14) Must provide sufficient space for parking and pedestrian access

Section 6. FEES AND CHARGES- Operators shall pay the appropriate fees as determined by the Revenue Code of the Municipality of Carmen, including but not limited to:

- 1) Business Permit Fee
- 2) Sanitary Inspection Fee

Section 7. MONITORING AND ENFORCEMENT- The Municipal Business Permits and Licensing Office (BPLO) shall maintain a registry of all registered private talipapas.

- 1) The Municipal Health Office (MHO), MENRO, and MPDO shall conduct periodic inspections.
- 2) Barangay Officials are mandated to monitor compliance within their jurisdiction and report violations to the appropriate Municipal Offices.

Section 8. PENALTIES- Any talipapa or vendor found violating any provision of this Ordinance shall be penalized as follows:

- | | | |
|-------------------------|---|--|
| 1 st Offense | - | Warning and three 3-day compliance order |
| 2 nd Offense | - | Fine of One Thousand Five Hundred Pesos (Php1,500.00) and temporary suspension of operations |
| 3 rd Offense | - | Fine of Two Thousand Five Hundred Pesos (Php2,500.00) and revocation of business permit |







Additionally, unpermitted structures may be subject to closure and demolition in accordance with applicable laws.

Section 9. TRANSITORY PROVISION- All existing private talipapas within the Municipality shall be given sixty (60) days from the effectivity of this Ordinance to comply with all requirements. Failure to do so will result in appropriate sanctions.

Section 10. SEPARABILITY CLAUSE- If any section or provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall not be affected and shall remain in full force and effect.

Section 11. REPEALING CLAUSE- All Ordinances, Executive Orders, or rules and regulations inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

Section 12. EFFECTIVITY- This Ordinance shall take effect fifteen (15) days after its approval.

ENACTED this 17th day of March, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
3-27-2026